

STANDING ORDER NO. 256

Subjects- Strikes and Lock-outs - Role of Police-Orders reg.

- I. INTRODUCTION** Strikes, processions and demonstrations constitute the principal methods adopted by labour to ventilate

their grievances against the Management or Government or for securing the acceptance of their demands. The role of the police in industries and labour strikes is to maintain law and order and not to interfere in inter labour management matters, unless the strike is declared illegal by the Government. It is thus essential that the Police conduct themselves in such a way that no impression is conveyed to either party of any partiality. Peaceful picketing to prevent non-strikers by persuasion from resuming work as distinct from the use of force or intimidation, may not necessarily call for police intervention. For breaking the strike, management quite often infiltrate workers loyal to them among the strikers to incite acts of violence etc. so as to discredit the strikers and to justify police intervention for legal action. Police should, therefore, be cautious of such tactics of management before initiating legal action against peaceful strikers so that their conduct may not be interpreted as partisan.

II. LEGAL PROVISIONS

The law on the subject is incorporated in the Industrial Disputes Act, 1947. All offences under it are non-cognizable and no prosecution can be filed without the order of the State Government or an officer authorised under section 34 of the Act. This however, does not mean that the police are prevented from taking action against strikers for infringement of other laws. It is the prime duty of the police to ensure that loyal workers are not obstructed or intimidated and that no violence takes place or damage caused to property by the strikers or their sympathisers. ACsP & SHOs concerned should visit places of labour trouble, watch strike situations and keep in touch with the developments to ensure prompt, proper and adequate police action whenever required. Advance information about the plans and designs of the strikers should be collected and suitable police arrangements made to guard against any mischief. Often the police have and can serve as an impartial instrument of negotiations to defuse situation.

III. GUIDE LINES FOR DEALING WITH TYPICAL SITUATIONS

Some typical situations in a strike by the industrial, labour and the legal implications are explained below:-

(a) When a strike continues for a long time and the management decides to start work by recruiting new labour or with loyal workers, a critical situation develops. During this period, cases of intimidation, assault, stone-throwing, wrongful confinement, etc increase. Suitable mobile patrols in the vicinity of the concerns should be maintained and Police arrangements reinforced especially when shifts change and workers enter or come of the mill/factory etc. While mobile patrolling in the affected area is permitted, no actual escorts should normally be provided by the police either for the loyal workers or to the vehicles carrying the goods of the management.

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is orderly and peaceful, it is unobjectionable, but if the picketeers indulge in intimidation of loyal workers, legal action can be taken against the offenders. Often loyal workers and/or officers of the management are prevented/restrained from going about their normal job or the management is prevented from removing goods from factory etc. In all this, there is an element of criminal intimidation and action under section 506-IPC, 341/342-IPC and/or section 7 Criminal Law Amendment Act can be taken. The latter has a very extensive range and covers not only intimidation and violence but also obstruction, interference with workers' property and even trailing of loyal workers or loitering with intent to deter loyal workers from going on duty.

(c) Stone-throwing and assault. Loyal workers and factory premises are often stoned by strikers in order to intimidate the loyal staff. Such acts would constitute offences under section 336, 337 or 338-IPC depending on whether an injury is caused or not and the nature thereof; they would also attract the provisions of section 7 Criminal Law Amendment Act.

(d) Cases of violence against individuals should be dealt with under section 324, 325, 326, 307 or 302 IPC depending on the nature of injury and sections 147, 148 & 149 where five or more persons take part in the assault.

(e) Similarly loyal workers are sometimes locked strikers, in which case, the offence would be one of wrongful confinement under section 342 IPC.

IV. STAY IN STRIKE

Strikers sometimes resort to what is known as the sitdown or stay-in strike. They employ these tactics in order to prevent management from taking on new labour or to express their resentment against the imposition of certain orders or alleged high-handedness of the management. The modus-operandi is for all to attend the factory regularly and thereafter to sit idle. In such cases, the Police cannot do anything except to see that no damage is caused to property. If, however, the management declares a 'Lock-Out' or the workers continue to occupy the premises after hours of duty, then action may be taken under section 448-IPC viz. house-trespass on the complaint of the management.

(ii) Lock-out is resorted to by the management when they are unable to come to any settlement with the striking staff. This is generally a measure taken to counter a 'Stay-in' strike. Once a lock-out is declared, it is incumbent on the strikers to leave the premises. To continue to stay thereafter would constitute an offence of trespass, actionable under sections 447/448-IPC.

under section 309 IPC. There should, however be no precipitate action in the matter as it is necessary to obtain medical opinion in respect of the strikers' (or agitators) physical condition viz. whether the hunger strike has proceeded long enough to endanger his life, before an arrest is effected under section 309 IPC. Where removal to a hospital is necessary for medical examination or tests etc. and the individual on hunger strike does not agree to be removed, the strikers or agitator could either be arrested initially under section 151 Cr.P.C. for taking him to the hospital and further action if justified, by medical opinion later, taken under section 309 IPC, or if the circumstances so warrant a case u/s 309 IPC, can be registered straight-way & further action taken.

DEMONSTRATION AT RESIDENCES PROHIBITION OF. There is an increasing tendency for organising demonstrations at the residences of Ministers and in some cases even officers by those protesting against certain decisions of the Government. This practice must be stopped and demonstrations/dharnas should only be permitted at offices and not at residences. Police must not permit demonstrations/dharnas at residences and take firm action against those trying to organise them at residences.

This supersedes the previous Standing Order issued this Hdqrs.endst.No.9826-10000/X-II, dated 27.7.1978.

Sd/-
(KANWALJIT DEOL) DCP:HQ(II),
for COMMISSIONER OF POLICE : DELHI.

445-2645/XXI/348/Spl.88.C&T.AC.IV, dated, Delhi the 10/1/89

STANDING ORDER NO. 257.

Subject:- Assaults on public servants guidelines regarding.

INTRODUCTORY. The expression 'public servant' has been defined in section 21 of the IPC and Section 2(c) of the P.O.C. Act. 1988. The expression public servant has such wider connotation then it is commonly understood. Many Special Laws provide that pasons exercising powers under these laws shall for the purposes of those laws be deemed to be public servants.

This standing order is concerned with offences against public servants specified in sections 186 , 353,332 and 333 of the I.P.C. The offence under section 186 IPC is committed when a public servants is obstructed in the discharge of his public functions. Offences punishable under the other three sections mentioned above are committed when a public servant is assaulted or criminal forced is used against him (Section 353-IPC), when simple hurt is caused